

SENATE/HOUSE FILE _____
BY (PROPOSED AUDITOR OF STATE
BILL)

A BILL FOR

1 An Act relating to the operation of state government, including
2 the commencement of audits, information made available to
3 the auditor of state, and disputes between governmental
4 agencies.
5 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 11.41, subsection 3, Code 2026, is
2 amended to read as follows:

3 3. If the information, records, instrumentalities, and
4 properties sought by the auditor of state are required by law
5 to be kept confidential, the auditor of state shall have access
6 to the information, records, instrumentalities, and properties,
7 but shall maintain the confidentiality of all such information
8 and is subject to the same penalties as the lawful custodian
9 of the information for dissemination of the information.
10 However, the auditor of state shall not have access to the
11 income tax returns of individuals or ~~information in a report to~~
12 ~~the department of health and human services, to a local board~~
13 ~~of health, or to a local health department that identifies a~~
14 ~~person infected with a reportable disease~~ to an individual's
15 name or residential address from a reportable disease report
16 under section 139A.3.

17 Sec. 2. Section 11.41, subsection 4, Code 2026, is amended
18 by striking the subsection.

19 Sec. 3. Section 11.42, subsection 3, Code 2026, is amended
20 to read as follows:

21 3. Upon completion of an audit or examination, a report
22 shall be prepared as required by section 11.28 and all
23 information included in the report shall be public information.
24 ~~The auditor shall not disclose information listed in section~~
25 ~~11.41, subsection 4, paragraph "a", in a report without the~~
26 ~~express written consent of the individual identified, or, in~~
27 ~~instances of alleged or suspected embezzlement, theft, or other~~
28 ~~significant financial irregularity, without the express written~~
29 ~~consent of the audited or examined entity.~~

30 Sec. 4. Section 11.52, Code 2026, is amended to read as
31 follows:

32 11.52 Refusal to testify.

33 ~~Except as otherwise provided in section 679A.19, in~~ In case
34 any witness duly subpoenaed refuses to attend, or refuses to
35 produce documents, books, and papers, or attends and refuses to

1 make oath or affirmation, or, being sworn or affirmed, refuses
2 to testify, the auditor of state or the auditor's designee may
3 apply to the district court, or any judge of said district
4 having jurisdiction thereof, for the enforcement of attendance
5 and answers to questions as provided by law in the matter of
6 taking depositions.

7 Sec. 5. Section 679A.19, Code 2026, is amended to read as
8 follows:

9 **679A.19 Disputes between governmental agencies.**

10 ~~1. Any litigation between constitutional and statutory~~
11 ~~offices, administrative departments, commissions, or boards of~~
12 ~~the executive branch of state government is prohibited. All~~
13 ~~disputes between said governmental offices and agencies shall~~
14 ~~be submitted to a board of arbitration of three members to~~
15 ~~be composed of two members to be appointed by the offices or~~
16 ~~departments involved in the dispute and a third member to be~~
17 ~~appointed by the governor. The decision of the board shall be~~
18 ~~final.~~

19 ~~2. A board of arbitration established under this section~~
20 ~~shall resolve any dispute submitted to it within sixty days~~
21 ~~after submission of the dispute.~~

22 Sec. 6. REPEAL. Section 11.3, Code 2026, is repealed.

23 EXPLANATION

24 The inclusion of this explanation does not constitute agreement with
25 the explanation's substance by the members of the general assembly.

26 This bill relates to the commencement of audits, information
27 made available to the auditor of state, and disputes between
28 governmental agencies. The bill strikes or repeals provisions
29 enacted by the general assembly in 2023 Iowa Acts, chapter 103
30 (SF 478).

31 Specifically, the bill strikes prohibitions on the receipt
32 and disclosure of certain information by the auditor of state
33 except under certain circumstances, and makes conforming
34 changes. The bill also strikes a requirement that litigation
35 between state constitutional and statutory offices be submitted

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1 to a board of arbitration and a requirement that a board of
2 arbitration for disputes between state governmental agencies
3 resolve disputes within 60 days. The bill repeals a provision
4 defining when an audit or examination begins for the purposes
5 of Code chapter 11 (auditor of state).